

Mohd. Qayyum v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 18 November 2019 · WRIT - C No. - 36212 of 2019 · **Writ disposed; petitioner relegated to Clause 6.5 application.**

HEADNOTE

A consumer challenging an electricity recovery certificate by writ, who does not dispute that Clause 6.5 of the U.P. Electricity Supply Code, 2005 is an available alternative remedy, is relegated to that forum. The High Court will dispose of the petition with a time-bound direction to the competent authority to decide a Clause 6.5 application after hearing, without examining the recovery on merits.

FACTUAL SUMMARY

Mohd. Qayyum petitioned the Allahabad High Court to quash a recovery certificate dated 16 September 2019 issued by respondent no. 4 and to restrain coercive action pursuant to that notice. On 18 November 2019, after two adjournments, counsel for the electricity department objected that the petitioner had an alternative remedy under Clause 6.5 of the Electricity Supply Code, 2005. Counsel for the petitioner did not dispute the objection. The Court disposed of the writ without examining the recovery on merits.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

alternative-remedy-recovery-certificate

HOLDING

Where a writ challenges an electricity recovery certificate and the consumer does not dispute that Clause 6.5 of the Electricity Supply Code, 2005 affords an alternative remedy, the High Court will dispose of the petition by permitting a Clause 6.5 application before the competent authority within a fixed time, directing that authority to decide it after hearing, without adjudicating the recovery on merits. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A consumer challenging an electricity recovery certificate by writ, who does not dispute that Clause 6.5 of the U.P. Electricity Supply Code, 2005 is an available alternative remedy, is relegated to that forum.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE RECOVERY CERTIFICATE DATED 16 SEPTEMBER 2019 AND THE UNDERLYING BILLING OR RECOVERY DEMAND

The Court did not examine the merits; it relegated the petitioner to Clause 6.5. ¶ 1